

STATEMENT OF WORK

EXPLORATORY WATER WELL AT LEADVILLE NATIONAL FISH HATCHERY

I. GENERAL CONDITIONS

- A. The Contractor shall provide all material, equipment, and labor required to drill and test a water well meeting domestic standards. This is an exploratory well to test for the feasibility of a production well for fish rearing.
- B. The well shall be drilled to a depth of approximately 125-150 feet and tested for maximum sustained flow.
- C. The Period of Performance is June 1, 2026 to August 31, 2026. The well is to test the feasibility of a well for fish production at the hatchery.
- D. The Contractor shall be responsible for installing all materials described in Section VIII.
- E. The Contractor shall have all certificates and licenses required by law for the execution of the work, and shall comply with all Federal, State, or local laws, ordinances, rules, regulations, and codes relating to performance of the work.
- F. Typical working hours are 7:00 am to 3:30 pm, 7-days a week. Any work that deviates from this schedule or during a holiday requires Contracting Officer approval.
- G. Any conflict or overlap of State of Colorado, EPA, OSHA, and other applicable Federal, State, and local regulations, the Contractor shall follow the most stringent provision.
- H. Safety
 - 1. The Contractor shall assume full responsibility and liability for compliance with all applicable Federal, State, and local regulations pertaining to the protection of workers, visitors to the site, and persons occupying areas adjacent to the site, including the provisions of 29CFR1910 and 29CFR1926 of the Code of Federal Regulations. The Contractor shall hold harmless the Government for failure to comply with any applicable safety or health regulations on the part of himself, his employees, or his subcontractors.
 - 2. Every Contractor employee shall be responsible for complying with applicable safety requirements, wearing prescribed safety equipment, and preventing avoidable accidents and property damage.

3. The Contractor shall provide and maintain a basic first aid kit for use of the workers. The kit shall contain first aid supplies in type and quantity commensurate with type and size of project and the work force, with items necessary for first aid treatment of all injuries. The Contractor shall advise all workers of the location of first aid supplies.
4. The Contractor shall post the telephone numbers of nearest hospital, ambulance service, and fire station in a conspicuous location. The Contractor shall advise all workers of the location of telephone numbers. Communication devices shall be made available and be ready at the work site to alert others in case of emergencies.
5. The Contractor shall provide at least one nonfreezing type fire extinguisher at the work site. These fire extinguisher(s) shall be placed in locations readily accessible by workers.

II. WORK SITE CONDITIONS

- A. The site of the work is at:
Leadville National Fish Hatchery
2846 Highway 300
Leadville, CO 80461
- B. The Contractor shall coordinate an utility locate, one-call, prior to work.
- C. Protection Environmental
 1. Pollution Control
 - a. The Contractor shall abate and control all environmental pollution arising from construction activities by complying with all applicable Federal, State, and local laws and regulations concerning environmental pollution control and abatement, as well as the specified requirements in this contract. The COR will inspect the site regularly for compliance.
 - b. Compliance with this requirement by any and all subcontractors shall be the responsibility of the Contractor.
 2. Prevention of Water Pollution
 - a. Throughout performance the Contractor shall comply with all applicable Federal, State, and local laws and regulations concerning the control and abatement of water pollution. The Contractor's activities shall be performed by methods that will prevent entrance or accidental spillage of solid and/or liquid matter, contaminants, debris, and other objectionable pollutants and wastes into streams, flowing or dry watercourses, lakes, ponds, and

underground water sources. Such pollutants and wastes include, but are not limited to, refuse, garbage, cement, concrete, sanitary waste, industrial waste, radioactive substances, oil and other petroleum products, aggregate processing tailings, mineral salts, and thermal pollution.

- b. Well drilling spoils (ie. dirt, slurry, gravel, etc.) will be stored onsite in a Hatchery constructed slurry pit for eventual disposal onsite.
- c. Sanitary facilities, such as chemical toilets, shall be located far enough from wells, live streams, or ponds to prevent water pollution.

3. Noise Pollution

- a. The Contractor shall comply with all applicable Federal, State and local laws, temporary use permit, orders, and regulations concerning the prevention, control, and abatement of excessive noise.

4. Solid Waste

- a. Non-hazardous solid waste will be contained in an on-site slurry pit and disposed of by Hatchery personnel.

5. Hazardous Waste

- a. The Contractor shall comply with applicable Federal, State, and local laws and regulations concerning the abatement, handling, removal, and disposal of hazardous waste.
- b. The Contractor's abatement activities shall be performed by methods that will prevent accidental spillage of solid material, contaminants, debris, and other objectionable pollutants and wastes into streams flowing or dry water-courses, lakes, ponds, and underground water sources.

D. Environmental Litigation

- 1. Time lost due to work stoppage because of failure of the Contractor to comply with these requirements may not be the subject of a claim for extension of time or for costs or damages.

E. Fossils and Cultural Materials:

- 1. Should the Contractor discover any fossils or cultural materials during construction operations, such objects shall become the property of the Government. The Contractor shall cease construction operations in the area of the "find," and immediately notify the station manager of such discovery. Construction operations may proceed in other areas not affected by this clause. Care shall be exercised by the Contractor not to damage or collect

fossils or cultural materials uncovered during excavation operations.

2. Failure to comply with this requirement may be considered a violation of the Archeological Resources Protection Act of 1979 as amended. Destruction of historic and prehistoric sites and/or unauthorized collection of cultural materials can result in criminal and/or civil penalties. Penalties can include fines, prison sentences, and/or confiscation of equipment.

III. TEMPORARY FACILITIES AND CONTROLS

A. Temporary Utilities

1. The site does have access to electricity and potable water with no charge or metering. The Contractor may use public sanitary facilities at the hatchery.
2. The Contractor shall be responsible for the daily removal and disposal of all debris.

B. Site access and equipment storage areas

1. All Contractor operations (including storage of materials) upon Government premises shall be confined to areas authorized or approved by the Hatchery Manager, or his designee.
2. Upon completion of the work, any significant disturbances or major issues caused by construction in work and storage areas must be cleaned up. Restoration to original conditions is not required, but substantial problems created during the project should be addressed to ensure the site is left reasonably clean and free of major obstructions.
3. The Contractor shall observe all laws and regulations of the local, county, and State authorities in the use of all public roads and highways for the transportation of materials and equipment in connection with work on the project.
4. The Contractor shall observe all overhead obstructions such as bridges, cables, ect. The Contractor shall repair damage to roads, highways, overhead obstructions, and similar items, resulting from operations performed in connection with this project.

C. Protection and Restoration:

1. The Contractor shall seek to protect all structures and vegetation during the progress of the work and remove all debris and unused materials from the site.
2. The Contractor shall limit removal or destruction of any vegetation to that which interferes with the work.

D. Traffic Regulation

1. If traffic regulation is required at the jobsite, the Contractor shall provide, erect, and maintain all necessary barricades, suitable and sufficient flasher lights, flagmen, danger signals and signs, and shall take all necessary precautions for the protection of the work and the safety of the public.
 2. Roads closed to traffic shall be protected by effective barricades on which shall be placed acceptable warning signs.
 - a. All barricades and obstructions shall be illuminated at night and all lights shall be kept burning from sunset until sunrise.
 3. Install appropriate traffic signs at crossroads and approaches to site as needed to direct all affected traffic. Specific sign and barricade requirements are detailed in ANSI D61, "Manual on Uniform Traffic Control Devices."
- E. Delivery and Storage: Material shall be delivered to the site in a dry and undamaged condition and stored appropriately until used. Storage accommodations shall provide good air circulation and protection from surface staining, when appropriate.

IV. MEANS AND METHODS

- A. The Contractor shall complete a well log report with the Colorado Division of Water Resources and pay any fees. The Contractor shall complete all other required paperwork and submit copies to USFWS.
- B. Final Inspection
 1. The Contractor shall request a final inspection upon completion.
 2. Work will not be considered ready for final inspection until all the work has been completed and the Contractor has certified that all items are properly operating and in strict compliance with all contract terms and conditions.
- B. Final Cleanup: The Contractor shall clean the site and remove all construction debris from the site, excluding drill spoils in the slurry pit.
- C. Payment: The Contractor shall submit a schedule of values. Other requirements may be required based on when the payment is requested. All components in the payment shall be in working condition, unless otherwise agreed upon.
- D. Final Payment: The Contractor shall submit the following prior to final payment: evidence of completion, guarantees, warranties, O&M manual, certificates, certified payrolls, and as-builts.

V. CONTRACTOR QUALIFICATIONS

- A. The Contractor and all subcontractors shall have all Federal, State, and local licenses, and/or certifications, etc., necessary to perform work in at the station. All

licenses and/or certificates must be current from start to finish of the project.

- B. Prime contractor shall have a minimum of 3 years of completing similar work in this Statement of Work. Prime contractor shall have a well driller's license in the State of Colorado.

VI. SUBMITTALS

- A. The Contractor shall provide copies of all required permits, clearance, and licenses obtained to perform this work to the Contracting Office.
- D. The Contractor shall submit manufacturer's warranties, guarantees, and certificates for all installed equipment listed on the Project Submittal List.
- E. Timing of Submittals/Unapproved Work: As specified above, the Contractor shall submit all deliverables, copies of all required permits, and all product data sheets to the Contracting Officer for review. These submittals must be approved PRIOR to the installation of any purchased or fabricated components. The purchase and/or installation of any unapproved components shall be at the contractor's risk. Contract performance time shall not be extended due to delays caused either directly or indirectly by the purchase and/or installation of unapproved components.
- F. All items in Section VIII shall be submitted for approval.
- G. The attached submittal form shall be used.
- H. Reports can be sent by email, USB stick and/or cloud storage service to the COR, CO, and station.
 - 1. The cloud service shall be available 30 days after the document is uploaded
 - 2. The Contractor shall verify that USFWS has access to a particular cloud service prior to purchasing space/subscription, due to IT limitations

VII. PERFORMANCE

- A. All materials shall be installed according to the manufacturer's instructions.
- B. The Contractor shall coordinate the construction start date with the Contracting Officer. The project shall be completed and available for use within 60 calendar days from the date the Notice to Proceed (NTP) is issued. Additional time will be allowed, if needed, to obtain permits and lead times for materials.
- C. During the performance period of the contract, the Contractor shall be available for conference calls as needed with the Contracting Officer, the Contracting Officer's Representative (COR), and the Government On-Site Inspector to discuss project progress and/or problems.
- D. The Contractor shall be liable for damages to roads, utilities, structures, and property, due to any act, omission, neglect, or misconduct during the period of performance of the services of this contract, unless the Government provided that portion of work that directly damaged one of these items.

- E. The Contractor is responsible for completing the job to the specifications outlined in this document. The presence of an inspection does not preclude the Contractor from following this document and the specifications outlined.

VIII. PROJECT REQUIREMENTS

- A. All work shall be in accordance with the Colorado Division of Water Resources (2 CCR 402-2).
- B. The well is considered non-potable well. The well will be used to enhance hatchery operation.
- C. General Legal Description: SE¼ NE¼ S36, T9S, R81W, 6PM
- D. Any removal of materials not outlined in this project shall be placed in a condition the same, or better, prior to the start of the project.
- E. The Contractor shall provide labor, materials, tools, equipment, and any other work to complete all items in the construction documents.
- F. Requirements may be changed based on field conditions. The changes shall be approved by the COR prior to commencing these changes.
- G. Well Requirements
 - 1. Requirements may vary based on the method of well development. The document in VIII.A shall be referenced for the particular method.
 - 2. The well casing shall be centered in the bore hole. The casing shall extend a minimum of 24 inches above the final grade. The casing shall be made watertight and overlap to prevent misalignment.
 - a. Diameter of 5-8 inches, sizing depends on drop pipe
 - b. Casing shall extend past the protective casing.
 - c. Install plumb and true to line.
 - d. Minimum pipe stiffness of 224 foot-pounds/in²
 - e. All pipe shall meet or exceed IC-1 impact classification
 - f. Extend to the bottom of the drill hole.
 - g. It was determined from the county floodplain map that this well is located outside of the 100-year floodplain
 - 3. Protective casing.
 - a. The protective casing shall be installed in accordance with Colorado

Department of Water Resources requirements.

- b. Connect protective casing with well casing.
 - c. Joints shall be welded or screw coupled to be watertight
 - d. Minimum 5" internal diameter for a 4-inch, 3 hp well pump
4. Well development shall be performed by water jetting, surge block, backwashing, or air jetting. Development results in the maximum practical and sustainable yield per foot drawdown.

H. Well log

- 1. The well log will use the standard Colorado Department of Water Resources completion report.
- 2. The well log shall be submitted through the submittal process.

I. Completed within 40 days of well completion.

J. Well Sizing

- 1. Install one well at the approximate location shown on the attached map.
- 2. 125-150 +/- feet well depth

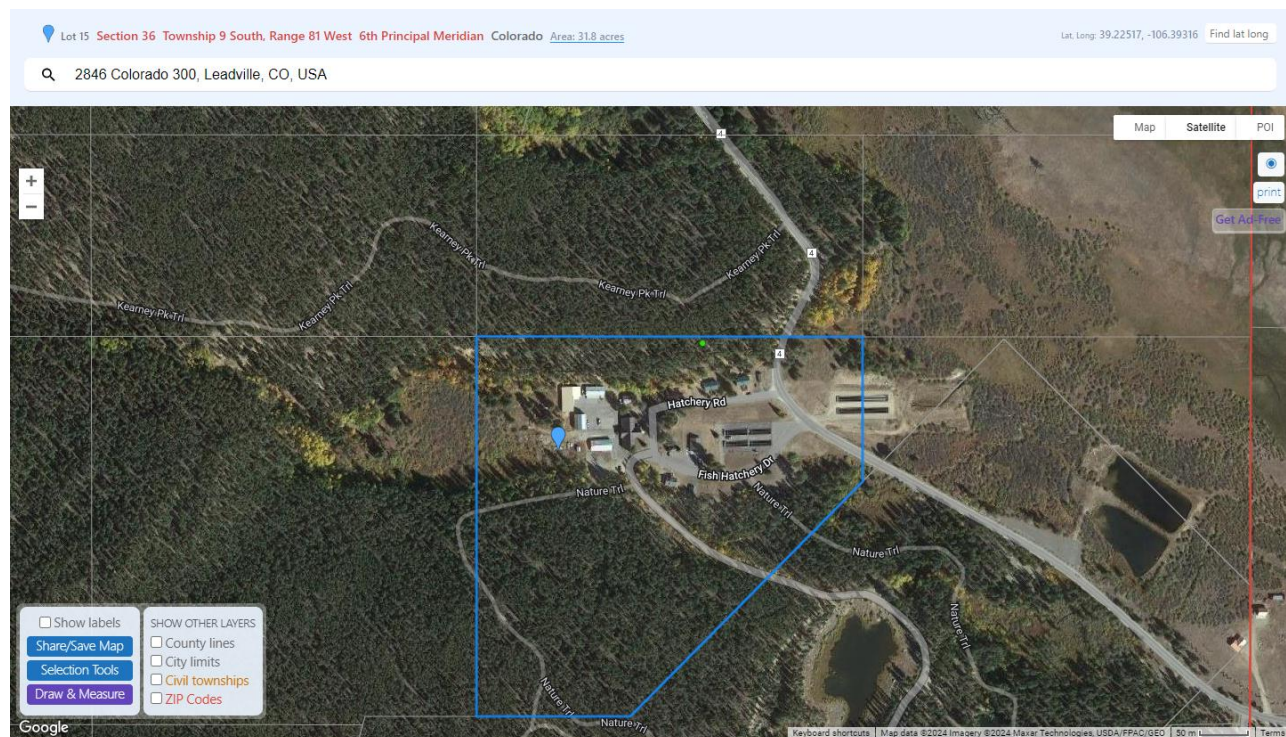
IX. POINTS OF CONTACT

A. Hatchery Manager

- 1. Josh Homer (509-433-1238)

B. Contracting Officer Representative / Technical Representative

- 1. Michael Wandersee (303-236-4479)



END OF STATEMENT OF WORK